

HEADNOTE

“1. Article 74 UPCA generally allows the Court of Appeal to decide, at a motivated request, that an order shall be given suspensive effect. Orders as meant in R.220.2 RoP are not excepted from this. In case of a conflict between the UPCA and the RoP, the provisions of the UPCA prevail (R.1.1 RoP). The Court of Appeal therefore considers that granting suspensive effect to an order pursuant to R.220.2 RoP is possible pursuant to Art. 74(1) UPCA, notwithstanding R.223.5 RoP.

2. Given the clear principle underlying Art. 74(1) UPCA and R.223.5 RoP, that proceedings before the Court of First Instance must as much as possible continue unhindered by any (procedural) appeals, the Court of Appeal shall only give suspensive effect to appealed orders under exceptional circumstances, especially if such order concerns an order as meant in R.220.2 RoP”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Appeal

PATENT
EP 3000239

SYSTEM AND METHOD FOR
UNIVERSAL CONTROL OF
ELECTRONIC DEVICES

KEYWORDS

Suspensive effect

expedition of the appeal

R.225 (e)

R.9.3 (b) RoP

Article 74 Effects of an appeal

SUMMARY

The Court of Appeal Luxembourg decided on an appeal. The patent at issue relates to a system and method for universal control of electronic devices. According to the headnotes of the decision, the Court of Appeal may grant suspensive effect to procedural orders under Article 74 UPCA when requested and justified, even where the Rules of Procedure appear to restrict this possibility. The Court emphasizes that suspensive effect should only be granted to such orders in exceptional circumstances, given the principle that proceedings at first instance should continue without obstruction from procedural appeals.